Kresen Kernow glossary of manorial terms

Confused about capons and copyhold, unsure of enclosure and easements and want to swot up on your knowledge of socage and surrenders? Our glossary of manorial terms aims to help with some of the more common manorial terms to aid researchers.

Term	Definition
Abstract of title	Summary of earlier documents showing previous owners of land or property.
Acreage	A measurement of an area of land in acres. Cornish acres were slightly different, usually containing 40 to 60 statute acres, as were the acreages in the Domesday Book, which used another measurement of area, a league.
Account	Contains manorial income and expenditure, usually kept by the steward or bailiff and could be known as ministers accounts.
Admission	Admittance of new tenant into a manor. See Surrender.
Affeeror	Official appointed to moderate and assess fines and amercements for offences, sometimes called an Assessor.
Ale Taster	Official appointed to check quality and measurement of ale for sale on a manor.
Alienation	A transfer of tenancy.
Amercement	Penalty paid for in court which then went to the lord, also known as a 'pain'.
Arable	Land used for growing crops.
Assessionable Manors	Also known as Antiqua Maneria or ancient manors, were the seventeen manors belonging to the Earldom of Cornwall, later Duchy of Cornwall.
Bailiffs	Manorial official and lord's representative often in charge of one or more manors and usually a tenant.
Barton	Farmland reserved for the lord of the manor or monastic farm.
Beadles	Under-bailiff with less authority.
Berbiagium	Payment in lieu of payment in sheep.
Burgage	Dwelling / house with a long narrow plot of land.
Call Book	Attendance registers for a manor court, listing the tenants who were required to attend.
Capon	Payment to the lord at Michaelmas or Christmas, as per conditions of their lease in the form of castrated cocks.
Cartbote	Privilege or right granted to tenants to wood for making and repairing carts from the lord's lands.
Chevage	Payment to the lord by a villein for the right to live outside the manor of their birth.
Chief Rent	Also known as 'High Rent', payable for a property to the lord of the manor by freeholder tenants.
Coheiresses	Land Transfer Act 1897, if a lord died without sons his daughters took his property as coheiresses known as co-parceners. As long as they were unmarried, if any sister died her share passed to her sisters. If two or more were married, their husbands could insist on the manor being divided, however this did not necessarily allow the division of a manor into two as manors tended to be viewed as a whole thing. They could be divided if courts were held alternatively or a greater part allotted to one, but the lordship could not be divided.

Common Land	The lord of the manor was the owner of the common and much of common land that survives today was known as common or manorial waste, described as the open, uncultivated and unimproved lands of a manor, usually areas of less productive farmland. It is a popular misconception that common land is owned by the general public, to which everyone has unrestricted right of access. All common land is private property, whether owned by an individual or a corporation. Today many commons are owned by local authorities, the National Trust and other bodies for the public benefit, but not all commons offer total access to everyone. Common land is subject to rights and those entitled to exercise these rights were called commoners. Historical rights of common included of pasture, the right to graze livestock; of estovers, the right to cut and take wood (not timber); of turbary, the right to dig turf or peat for fuel; in the soil, the right to take sand, gravel, stone, coal and other minerals and of piscary, the right to take fish from ponds and streams.
Copyhold	A manorial tenancy agreement. Smaller landholdings within manors were held by copyhold tenure and it is the proof of title to copyhold land that protects manorial documents by law. This type of land was owned by the lord or lady of the manor but tenanted out to people who lived on manorial lands. Copyhold land could be bought and sold, inherited, left in a will, mortgaged, and settled, but every transfer of land was surrendered back to the lord of the manor before admitting new tenants. The record of the transfer of land was written up in the manorial court rolls and a copy was given to the tenant, this is where the term 'copyhold' comes from. This form of land transfer continued until the Law of Property Act, 1925.
Conventionary Rent	An annual rent agreed with the tenant in the case of a tenant at will.
Customs	Laws and rights in which the tenants lived by on a manor, which could differ from manor to manor.
Customary tenant	Another term for a copyholder tenant or a tenant who held land by the customs of the manor.
Custumal	A survey which contains details of tenants with the manor customs they held land by, rents and services they owed the lord.
Court Baron	A manorial court which usually met every three to four weeks and dealt with the day to day running of the manor including customs, admission and surrender of new tenants, copyhold, payments of rents and heriots to the lord, all tenants were summoned to attend.
Court Leet	A manorial court which usually met twice a year and had the right to deal with minor criminal offences and hold view of Frankpledge.
Court Roll / Book	Minutes of the court and usually in a distinct format listing tenant, followed by the names of jury, presentments, general matters, death of tenants and surrenders of land.
Cucking stool	Chair used for punishment for disorderly women, dishonest tradesmen, or a public nuisance.

Demesne	Land kept by the lord for his own use compared to that which was leased to tenants distinguished from land granted to tenants.
Deodand	A term for item or animal which had been the cause of the death of a person, which was then forfeited to the crown or lord of the manor.
Distraint	Seizure of property, if a rent or fine is not paid
Divided/Undivided Interest	Often manorial interests were held by several people or parties. An undivided interest was shared with another known party, who had consented to the agreement. A divided interest was where an undivided interest was then itself split; often shared between a family member of the originally interested party, and potentially without the knowledge/consent of the other originally interested parties.
Easement	The right to use someone else's land, the most common of these is right of way.
Enfranchisement	Converting copyhold land into freehold land.
Escheat	Land returned to the crown or lord usually if a tenant died without any heirs, the heir was a minor, or had committed a crime, where they had to forfeit land.
Essoins	Excuses for not attending court.
Estover	A type of allowance, for a set amount of time. For example, a tenants allowance of wood from common land.
Estreat	A list from a court roll, detailing the fines and amercements imposed by the court.
Estate	Total lands and property belonging to one person, could include many manors.
Extent	A financial survey of a manor listing the valuation of every element of the land and services where the lord collects income.
Extinguishment	The destruction of a right or contract, for example, debt, rents or copyhold contracts.
Fealty	Taking of an oath to adhere to the customs of the manor, similar to homage but fealty could be sworn to different lords where tenants held property. Homage was swearing loyalty to one lord.
Feudal System	A political, economic and social landholding system where land was held by structured around land held by a vassal from a lord in return for services and homage.
Fee	Land capable of being inherited on death of tenant. Also known as fief.
Fee Simple	Right to own a land or buildings permanently, under common law, for example freehold ownership.
Fine	Payment to lord for being admitted to manor.
Franchises	Crowns ancient privileges, nor always relating to manors but were granted or acquired by lords of the manor.
Firebote	Privilege or right granted to tenants to gather firewood from lord's lands for fuel
Frankpledge	Group of ten free men who pledged mutual responsibility for the maintenance of law and order of courts derived from a system of tithings.

Free Bench	Custom where a widow could hold her late husband's tenancy for her life or until she remarried under the understanding that she remained chaste.
Free Hold	Land held outright and not subject to customs of the manor.
Free Warren	Right, granted by royal charter to a lord of the manor, to hunt certain animals, for example, pheasant, rabbit, partridge or hare within a certain area.
Haybote	Also known as hedgebote. Privilege or right granted to tenants to take wood for repairing a fence from the lord's land or common.
Hayward	Official responsible for woods, corns and meadows.
Heriot	A payment to lord on death of tenant usually in the form of a best beast.
Hide	The amount of land that could be ploughed or amount of land need for a household in a year - 10 hides, made a tithing, 100 hides made a hundred.
Homage	1) Jury sworn in at the beginning of courts. 2) Oath by tenant acknowledging his loyalty to lord.
Honour Court	Alongside the two usual manorial courts there were honour courts. An honour consisted of a group of manors and smaller non-court holding units usually called fees or fiefs, which may also of be known as lordships. Not all manors were part of honours, but tenants of these manors were bound by the honour court in addition to the normal manorial court. Honour courts were held by chief tenants and dealt with receiving the money raised by individual manors, appointing officers and occasionally smaller court issues. Honour courts fell into disuse after 15th century, and few existed beyond the Tudor period (1485-1603).
Housebote	Privilege or right granted to tenants to take wood for repairing a house or a payment made for this right.
Hundred	Pre Norman Conquest administrative division of land.
Incidents	Charges and interests in lands that remained after compulsory enfranchisement of copyhold land in 1920s. Incidents could be extinguished by payment of compensation by tenant to lord of the manor.
Inclosure	The legal process of enclosing or fencing off small landholdings and open fields into larger areas of land. Once this process was completed, the land was restricted to those allowed to farm it and stopped being for common use.
Incorporeal hereditament	An interest that can be inherited in title, but cannot be physically owned, for example, a mineral right.
Knights Service	Military service owed to the lord of the manor, abolished in 1660.
Land Registration Act 2002	Act amended the way manorial rights are classified and introduced a requirement to register certain rights for protection when it came into force in 2013.
Law of Property Act	1925 Law of Property Act abolished the form of land tenure known as copyhold and ended the last meaningful function of manorial courts.
Leasehold	Land let which was not governed by the customs of the manor.
Lord of the Manor	Title given to a person holding the lordship of a manor from the crown, mense lord or tenant in chief.

Lord Paramount	A lord who owns their own land of fief, independently of any higher-ranking lord, often denotes a lord with the most superior authority. King or Queen after 1066 were known as this. Still in existence today, the Duchy of Cornwall is Lord Paramount over Cornish lands.
Manor	A manor was an administrative unit rather than a geographic area of land, and was known as a manor if it was owned by a lord or lady and held a court for tenants.
Manorial Documents Register	Manorial documents were generated by the internal administration of a manor. The Manorial Documents Register (MDR) is maintained by The National Archives, on behalf of the Master of the Rolls, as a record of the whereabouts of manorial documents. The MDR was set up as a consequence of the 1922 Law of Property Act since proof of title to former copyhold land was in many cases contained within the books and rolls of manorial courts.
Manumission	Process where unfree tenants were granted freedom.
Mesne Lord	A lord holding land from another more superior and who has sworn homage to the said lord.
Messuage	A house with land and outbuildings.
Merchet / Merchate	Fee or tax paid to lord levied on marriage to a tenant's daughter.
Manorial Rights	Certain rights which were retained by lords of the manor when land became freehold in the early 20th century. Including rights to mines and some minerals, sporting rights like hunting, shooting and fishing, rights to hold fairs and markets, tenant's rights of common and lord's or tenant's liability for the construction, maintenance and repair of dykes, ditches, canals.
Mineral Rights	The right to extract minerals, from beneath a piece of land. Often called 'rights to mines and minerals' today and accompanied by rights to access mines and minerals.
Moiety	A half share or interest.
Open Field	Areas of land held communally by the manor and farmed in individual strips
Outland	Land let to tenants that was some distance from the demesne.
Pain	Rule or regulation of the manor.
Pannage	The privilege or right of a tenant to pasture pigs in woodland or a payment made for this right.
Parcel	Area of land that make up a manor.
Parliamentary Survey	Survey of lands created by Oliver Cromwell to identify landholders of each manor, the valuation of the land and rent paid within it.
Particular	A description of a manor, often written by a steward and accompanied by a valuation.
Pasture	Land used for grazing animals.
Peppercorn Rent	Token rent, when land was rented free of charge but specified in deeds, to signify it was rented land not gifted. Other examples could be a pair of white gloves, a rose, or a grain of wheat.
Pinder	Official who impounded livestock in the pound.
Pinfold	Also known as pound. Enclosure for holding stray, trespassing or distrained animals.
Precept	Notice issued by the bailiff to hold a court.

Presentment	Statement by the jury or officer of the manor court of matters to be discussed in court.
Perambulation	A description of manor boundaries.
Pillory	A punishment device, consisting of a wooden frame mounted on a post, with holes or rings for trapping the head and hands. The offender was confined and subjected to public ridicule, abuse, assault, etc. Manors with court leet jurisdiction had the right to a pillory.
Plea	Action taken by a tenant against another.
Ploughbote	The privilege or right of a tenant to take or cut wood to repair a plough.
Profit à prendre	The right to take something from someone else's land. Divided into two categories, common and several (separate) rights.
Quia Emptores	Law passed in 1290, which changed how manors were granted preventing tenants to alienate (selling or transferring) their land by subinfeudation (sub-letting and new vassal owed duties to person who had alienated land). Instead alienating their land by substitution (paying lord duties and receiving alienation fee from new tenant but expected no duties or service from new tenant of that land). This was a way of controlling land ownership disputes.
Quitclaim	Legal release or transfer of a claim to a right of land or legal claim against a person. Used in the medieval period to convey land or property later known as a release.
Quit Rent	Payment to lord by a freeholder in lieu of services that he would otherwise owe to the lord of the manor.
Rack Rent	Negotiable rent for an annual tenancy.
Receiver	Treasurer to the lord of the manor's treasurer.
Reeve	A tenant responsible for the management of the manor.
Relief	Money paid by a freehold tenant on taking up their holding, often equivalent to one- or two-years' rent.
Reputed Manor	A manor that has lost its manorial status, due to lack of court, tenants, services, or demesne land. Nearly all manors would now be reputed and there a very few legal manors.
Rental	A document listing tenants and the amount of rent due.
Right of Wreck	Right to the wreck of ships washed up upon the shore belongs to the Crown but could be franchised to a lord of the manor.
Seisin	Possession of land or property. The Livery of Seisin was a ceremony, where a physical transfer of land was required in the presence of witnesses, for example, the passing of soil or a twig from the land being transferred.
Sequestration	Confiscating of Royalist estates who fought against Parliamentarians.
Seignory	Feudal lordship
Serjeanty	A type of feudal tenure with an obligation to serve the monarch.
Severalty	A whole share.
Socage	Tenure of land in exchange for services usually by a fixed payment in cash or kind.
Sporting Rights	The privilege or right to shoot and hunt game over or on manorial land.
Steward	Official running the manor on behalf of the lord, and presided at the manor courts if the lord was absent.

Suit of Court	A tenant's duty to attend court.
Surrender	Process by which transfers of copyhold land were made in the manorial courts. Property had to be surrendered by the old tenant before the new tenant was admitted. This process made sure the entry fee of a tenant was paid and the new tenancy was recorded.
Survey	Description of a manor or manors, providing details of manorial boundaries and customs and detailing each holding of land. There are three types of manorial surveys: extents, rentals and terriers.
Tallage	A type of land tax.
Tenant	A person who rented land from a lord of the manor.
Tenant in Chief	Lord who held manors directly from the crown.
Tenement	Property, which could be buildings or land.
Tenure	The terms under which a tenant holds land from the lord of the manor for example copyhold or freehold.
Terrier	Description of a manor which follows a topographical arrangement.
Tithing	A group of ten men and their households in the system of frankpledge. Also, a unit of land, originally consisting of ten hides. Were later seen as subdivisions of a manor.
Tithingman	The officer responsible for a borough who reported offences to the court leet.
Toll Tin	Royalty historically paid to the owner of the land if tin mining occurred in manorial demesne.
Turbary	The privilege right to cut turf or peat for fuel on common ground or on another person's ground.
Valor	Document which sets out income and expenses of an estate, sometimes showing how much each manor could be expected to provide. These were based on manorial accounts.
Valuation	See valor.
View of Frankpledge	Inspection at Court Leets of men who were or should be in frankpledge. See frankpledge.
Vassal	A person who agreed homage, allegiance and military service to the lord.
Villein	Peasant bound by feudal system to work the lord's land, mines, forests in return had some rights to land, farming, property and lord's protection. Could be bought, sold, or traded. Required the lord's permission to leave the manor or marry. Similar to enslavement, but slaves owned no land and worked solely for the lord and survived on donations from the Lord of the manor. Also known as serfs.
Villeinage	Land tenure, which involved providing service and produce to a lord in return for land, later developed into copyhold in the 14th century.
Waste Land	Uncultivated, unoccupied land, often subject to rights of common.
Writ	Written order made by a monarch.